



Procedure No: EXP202409073 (AI/00423/2024)

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 29/05/24, A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity, AMENÁBAR GRUPO PROMOTOR E INMOBILIARIO, S.L. (AMENÁBAR), with CIF: B75137166 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states in their complaint:

“On 19/05/2023, through the link at the bottom of the emails that the real estate agency Amenábar sends me regularly, I made the request to unsubscribe exercising my right to object to the processing of my personal data for marketing campaigns, receiving confirmation of this at that very moment. I attach screenshots of the process and verification of the unsubscribe.”

Ignoring my express request, the emails have not ceased, and I have continued to receive their commercial communications. I attach those received on 1/03/2024; 4/03/2024; and 11/04/2024...”

Along with the complaint, the following documentation is attached:

- Copy of the inclusion in the Robinson List of the email address ***EMAIL.1, since 06/07/11.
- Screenshot of what appears to be a promotional email from the entity Amenábar (without heading), where at the bottom it reads “You can <>”, “Update your preferences”, along with two more screenshots of pages titled “Amenábar promotions” where one of them has marked the option “I never signed up for this mailing list” and in another the response “Thanks for the feedback”
- Dated 01/03/24, 04/03/24, and 11/04/24, copies of the emails sent from the address: “Amenábar”, ***EMAIL.2 to the email address: ***EMAIL.1, with the Subject: “Aires de Parla...”, containing photographs and construction features of a housing development in the locality of Parla (Madrid).

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SECOND: On 19/06/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

The transfer was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), by electronic notification, with the following result: “Date of access to the content of the notification: 21/06/2024”, as recorded in the file.

THIRD: On 17/07/24, a response letter from the respondent entity was received by this Agency, in which it states, among other issues, the following:

“...As a result of the complainant's request and the information request made by the AEPD to this Company, it was identified that the complainant had provided a series of data in connection with the request for information regarding a construction that would later be transformed into the contractual execution that motivated the purchase of the real estate whose information had been requested, and whose formalization took place in April 2021.

In the request, the complainant initially provided the following data: name, phone number, and email address for the purpose of receiving information regarding a certain promotion that the respondent was carrying out. Later, the complainant requested to unsubscribe from communications related to interested parties and Clients of Amenábar Promociones via the link provided below in the emails, as the complainant shows in the documentation attached to the filed complaint.

Upon requesting the unsubscription via the mentioned link, the respondent proceeded to process the requested unsubscription, as recorded in the documentary annexes of the filed complaint (pages 9 and 11).

However, the complainant had opposed receiving commercial communications related to some promotions or services, but not others, as is the case with the promotion "Aires de Porta," which is why they continued to receive such communications. As such, we attach a sampling annex of communications sent and a screenshot of the status of the email account in the company's databases.

Document No. 1.

Due to the complaint filed and after conducting internal investigation work, the company has proceeded to unsubscribe the complainant's email account, so that in this regard, in the company's database, that email is now listed as blocked, making it completely impossible for the complainant to receive any type of commercial communication from the respondent. Notwithstanding the above and as a manifest act of goodwill on the part of this entity, a letter has been sent to the complainant.

C/ Jorge Juan, 6

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3/6

by email, informing him that his request to unsubscribe from all commercial communications in the AMENABAR systems has been processed. Attached as Document No. 2 is a copy of the communication sent. Therefore, it seems indisputable to conclude that the holder of the email account ***EMAIL.1 has had his claim satisfied. As a result of the blogging of all his contact details for commercial purposes in the information systems of the defendant company.

In light of the above, it is established that a lack of diligence in the actions of my represented party cannot be proven, since the unsubscribe from commercial communications was carried out for certain areas [interested parties and clients], but not for all databases of the defendant, having taken the necessary measures for the claimant to know how to request his opposition to the receipt of commercial communications in the very emails received, as indicated by the claimant in his complaint. At the same time, he was not informed of the complainant's interest in opposing the receipt of commercial communications in all areas and not just in part of them.

II. Report on the causes that have motivated the incident that originated the complaint. First of all, it is relevant to highlight that this party acts at all times with scrupulous respect for the current regulations, complying with the legally established framework in accordance with the requirements to be considered in the sending of commercial communications.

This aspect will be reflected throughout this document, in the diligence shown by the Company in all its actions, as well as in its efforts and proactivity to ensure and protect the rights of the interested parties and its interest in nullifying or mitigating any risks arising from its actions, if any, in a fully efficient manner. Having established the above, it should be brought to the attention of this Agency the relationship that binds it to the claimant.

In this regard, it should be mentioned that the holder of the email account ***EMAIL.1 is A.A.A., who requested information regarding a property from the defendant, formalizing the purchase of a real estate asset from the developer through a contract signed on April 30, 2021. Furthermore, as the claimant is well aware, in each commercial communication that the defendant company sends to its database and, consequently, in each of the communications received by A.A.A., he was given the opportunity to oppose receiving those communications through a simple and free procedure.

Specifically, through the link that appears in the footer of each and every one of the advertising emails that the claimant attaches to his complaint, in which the mechanism enabled for the interested party to express his opposition to the receipt of commercial communications is undoubtedly displayed. Well, at this point, it is of interest to the Company to inform this Agency that when a

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The interested party clicks on the aforementioned footer link. They are redirected to a page where they must enter the reason for the request to unsubscribe, if possible, thus the system already assumes that the email account they wish to remove from that specific email marketing list has been selected and read, regarding which they wish to stop receiving commercial communications, but not regarding others unless the client expressly requests it.

Due to the events that occurred, it was impossible for this party to fully satisfy the claimant's request to not receive any type of commercial communications or promotions, since the unsubscription from commercial communications was always based on a database of candidates, clients, and interested parties, but not on real estate promotions. Consequently, they continued to receive commercial communications as they had not expressly requested to stop receiving them or to configure their preferences, which is also allowed through the link provided in the footer in addition to the unsubscription. This party wishes to emphasize that AMENABAR did attend to the request of the complainant to oppose the receipt of commercial communications, since at the very moment it received the complainant's request, the system itself confirmed the unsubscription...

FOURTH: On 22/08/24, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws."

II.-

Statute of Limitations of the Infraction

The facts stated by the complainant relate to the receipt of advertising emails after having requested not to receive them again, attaching copies of the emails received on 01/03/24; 04/03/24; and 11/04/24 to corroborate this.

Well, the fact that commercial communications are sent without having been previously requested or expressly authorized may constitute a violation of the provisions of Article 2.1 of the LSSI, which states the following: "1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited..."

The aforementioned infraction is classified as "minor" in Article 38.4.d) of that regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infraction."

However, Article 45 of the aforementioned regulation (LSSI) establishes, regarding the "Statute of Limitations" of infractions, that minor infractions will expire after six months.

Therefore, according to the provisions of the transcribed article, the infraction must be understood as expired if, more than six months have passed from the date of the events, the initiation of the proceedings has not been notified to the respondent.

In the case at hand, from the documentation provided by the complainant, it is verified that the last

advertising email received from the entity being complained about dates from 11/04/24, therefore, based on Article 45 of the LSSI, the alleged infraction must be understood as expired since the six-month period prescribed as the maximum time for the expiration of the infraction has been exceeded.

Thus, in accordance with the aforementioned, the Presidency of the Spanish Data Protection Agency AGREES:

FIRST: TO DECLARE the EXPIRATION of the alleged infraction committed, with the proceeding number EXP202409073 (AI/00423/2024), and the filing of the proceedings.

SECOND: TO NOTIFY this Resolution to AMENÁBAR GRUPO PROMOTOR E INMOBILIARIO, S.L. Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the provision.

C/ Jorge Juan, 6
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6/6

additional fourth of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to vacancy of the positions of President and Deputy.

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